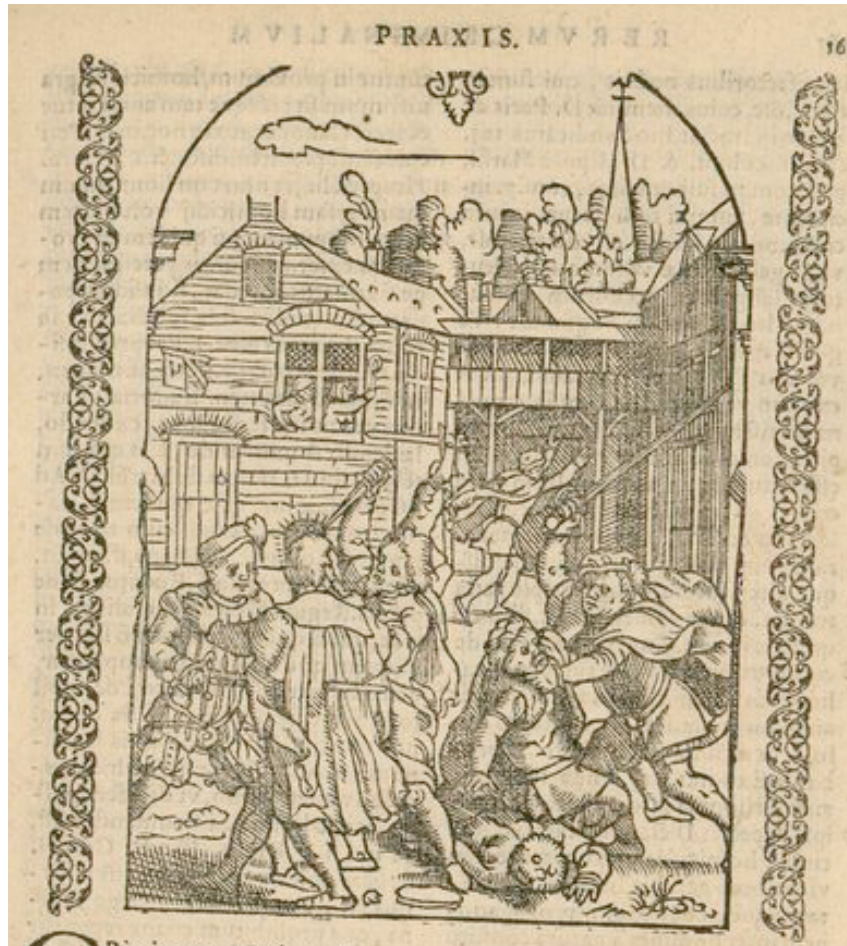


EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period



Jodocus Damhouder, *Praxis Rerum Criminalium*, 1562, p. 167

University of Maryland, College Park, MD, August, 18-20, 2013

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

Keynote Robert Davis, Ohio State University. "Typologies of Violence in Early-Modern Europe"

- 1 Adam Teller, Brown University. "Killed or Be Killed. Realities and Representations of Violence in Seventeenth-century Ukraine"
- 57 Samuel Cohn, University of Glasgow. "Plague and Violence against Jews in Early Modern Europe"
- 70 Rebekka Voss, Goethe-Universität, Frankfurt. "Eschatological Avengers or Messianic Saviors? Violence and Physical Strength in the Vernacular Legend of the Red Jews"
- 90 Serena di Nepi, Sapienza Università di Roma. "Rome, 1571: A Body and a Murder Investigation in the Ghetto"
- 112 Daniel Strum, Universidade de São Paulo. "La Mala Sangre: daily violence within the Western Sephardic Diaspora"
- 145 Jerzy Mazur, Université de Nantes. "[Jewish Violence in Polish Laws and Courts]"
- 163 Elisheva Carlebach, Columbia University. "Big Blows on a Small Stage: Records of Violence in Jewish communal registers, Altona 1765-1776"
- 182 Yair Mintzker, Princeton University. "A Jewish Perspective on the Execution of 'Jew Süß': 4 February 1738."
- 192 Noa Sophie Kohler, Ben-Gurion University of the Negev. "The murder of a travel companion. Violence, gender and living conditions of servants in 18th century Prussia"
- 200 Yohanan Petrovsky-Stern, Northwestern University. "Exorcism and Violence: Contexts Internal and External."
- 208 Francesca Bregoli, Queens College of the City University of New York, "Violence at a Purim Ball"

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

La Mala Sangre: daily violence within the Western Sephardic Diaspora
Daniel Strum, USP

This presentation suggests that recurrent private acts of violence within dense and homogenous communities, or rather diasporas, points to a tension between powerful gossip transmission and imperfect translation of such power into efficient social control.

This research explores the manifestation of private violence in the daily life of the Western Sephardic Diaspora in the early seventeenth century, examining inquisitorial sources from Portugal and notarial records from the Netherlands. These sources indicate that as much as group members expected mutual responsibility, trustworthiness and compliance with social norms from their fellow group members. Yet when they felt disappointed, they expressed their resentment aggressively. Aggression took shape of offenses and beating with hands, sticks and various other objects, including cold steel. The body of sources suggests that the Western Sephardic Diaspora involved a significantly fervid environment.

Studies in social network analysis, anthropology and new institutional economics predict that the attributes of the Western Sephardic Diaspora in the turn of the seventeenth century would make its members highly susceptible to gossip. The diaspora's social network comprised a high proportion of lasting and strong ties, and involved frequent and significant interactions among many of their members. The latter shared a relative consensus about what constituted proper behavior in trade, gambling, sex life and decorum. Hence, information about misbehavior flowed rapidly and intensely within the group.

Such attributes supported informal collective action in the form of social and economic estrangement, and ridicule. The same attributes also facilitated verification and sanction by the judicial system. Nevertheless, the effectiveness of both private and official mechanisms was imperfect. Group members married, socialized and conducted sensitive and sizeable transactions mostly among themselves. In Amsterdam, group members also resorted to the newly founded community institutions and its establishment for political protection and economic aid. However, Western Sephardic Jews and New Christians did not rely exclusively on each other for social and economic relations. The actuality of such outside options diminished the deterring power of collection action. Both official and informal mechanisms were not only imperfect but also costly. Judicial proceedings

consumed time and money, whereas the social entanglement of the diaspora was precisely what made collective action costly to the same individuals who inflicted it.

The effectiveness of gossip alongside the imperfection of the social control mechanisms made those who felt either abused or liable to undeserved sanction more irritable and, therefore, more prone to turn to violence.

Aggression was usually followed by reconciliation or at least mollification, to which official sanction and social pressure had a critical role. Yet retaliation against family members, in fact, facilitated appeasement and compromise by increasing the costs of extending conflict and, therefore, intensifying one's family social pressure to compromise. Yet retaliation against family members, in fact, facilitated appeasement and compromise by increasing the costs of extending conflict and, therefore, intensifying one's family social pressure to compromise. The role of family in securing stability present significant commonalities with the model of "community responsibility mechanism" described by Avner Greif and others for securing transactions among multinational traders in medieval fairs.

Collectively the group perceived such outbursts of private violence as internally disruptive and externally undermining the group status within the broader society. Between individuals and the group, family emerged as a central institution. Relatives were expected to automatically take the side of their offended kin. Hence, the enmity of a family member was extensive to one's relatives as well.

Most research about New Christians' lives deriving from inquisitorial files tends to focus on the denunciations and confessions sections of the trial files, and overlook the culprit's defense. In fact, when it occurs, the defense section is one of the richest materials provided by these sources. In such defenses, culprits who did not confess right away strove to discredit those whom they assumed were their denouncers. Defendants did not know the identity of their denouncers, only the place and time in which the "crimes" purportedly took place. In addition, the lists of charges presented to defendants purposely broke up each accusation into several in order to convey the impression that defendants had a much larger number of denouncers than they actually had.

Defense strategy basically consisted of claiming that all those who the defendants suspected to have denounced them hated them deadly and, therefore, would falsely accuse them before the inquisitors. If a defendant succeeded to impeach all, or nearly all, of his actual denouncers, he or she might either be absolved or given the lesser charge of suspicion of heresy. In the first case, the defendant would not be punished and would retrieve all his property that had been seized upon imprisonment, except for trial costs. In the latter case, he or she would recover a portion of the property and would receive a mild penalty, leaving the

person's reputation less tainted within a society in which purity of faith and blood came to play an increasingly significant role in establishing one's status.

Such defense strategies, however, had consequential shortcomings. From the Inquisition's cell, the defendant had to be able to identify those who actually accused him, supposedly in secret. For that purpose, culprits typically listed all possible accusers in the impeachment (contradiction) articles, recounting the reasons for becoming an object of hatred and designating witnesses thereof. The inquisitors assigned commissioners to investigate the witnesses on those articles in which the defendant succeeded to make reference to an actual accuser. Investigations, which often took place in localities other than the Inquisition headquarters, cost money. Hence, not every culprit could afford this expedient. Furthermore, such procedures also took time, and were conducted at the discretion of the inquisitors. Finally, the inquisitors were to judge whether hatred prevailed between the accuser and the culprit. As a result, defense was effective when the number of accusers was small and the culprit was able to convince the inquisitor to consider that animosity might indeed have prevailed between the parties.

Then as now, it is very hard to establish whether one hates someone else. Inquisitors tended to give greater credit to claims that comprised descriptions of violence. Consequently, private violence emerged as a juridical category that provided a clearer indication of animosity to inform a lawsuit. Furthermore, inquisitors accepted evidence of hate between the culprit and denouncers' family members, as if there was a transitive property of hatred within the family: the enemy of one's uncle is also the enemy of the nephew/niece and so forth.

The corpus of inquisitorial files examined comprises those initiated by the sweeping wave of imprisonments cautiously directed against New Christian merchants resident in Porto between 1618 and 1621. Amid them, the case of Manuel Rodrigues dos Santos is emblematic. He managed to escape to Madrid, and with the help of other Portuguese New Christians in Spain, he embarked in slave trafficking journey to Africa. Recognized and denounced along the way, he was arrested in Angola and brought to the Inquisition in Lisbon at the end of 1622.

By the time of his imprisonment, Santos had only two accusers. A third person denounced him while he was already in prison. This was a considerably small number of accusers vis-à-vis his fellow townsmen imprisoned shortly before him. Santos denied all accusations against him and presented long lists of impeachment articles. The first list contained 81 articles.

He succeeded to make a point that two of his accusers disliked him. He also made a case that the husband, uncle, brother and brother-in-law of the final denouncer hated him too. He also claimed that this last denouncer's accusations were false, because he was not in Porto but in Madrid at the time of the "crime" informed by the Inquisition's prosecutor to the culprit and his lawyer.

After more than four years in prison and a torture session, Santos was pronounced suspect of heresy and convicted to a year of banishment in the hinterland village of Évora Monte. Culprits who remained either “negative,” i.e., denied all charges, or “diminutes,” those who did not confess a number of charges, were submitted to torture. Undergoing torture without confession was a delicate tactic. It could be a sign of either innocence, if there were few and not very grounded charges, or of pertinacity in one’s heresy. The former could lead to absolution or a mild penalty, whereas the latter lead to capital punishment. Santos’ sentence was a significantly mild one in both concrete and symbolic dimensions, compared to most cases deriving from the imprisonments in Porto around 1618–1621.

It is true that Santos late imprisonment allowed him to prepare his defense better. He could know which fellow countrymen had already been imprisoned or freed, and most probably he was able to collect details about their confessions too. As a rule, accusations derived from confessions, which were the only other alternative for those who were unable to make a solid defense and undergo torture, and wished to avoid capital punishment. Confessing having had accomplices who were not yet imprisoned was a sign of the culprit’s sincerity in the eyes of the Inquisition.

Santos’ defense was successful because he was able to make a case that he had fierce disputes with his accusers, their families and, not least important, with various members of the New Christian group in Porto, many of which ostensibly culminated in violent outbursts. As result, his claims that he was not very well liked among the pool of potential Judaizers, and not only those who directly denounced with as a heretic, were more credible.

The origins of alleged animosity varied. It included business differences and competition, gambling, bullying, scandals about one’s sex life (adultery, prostitution, impotence), etc. Most cases convey the perpetrator’s narrative. All quarrels happened partially in public spaces and supposedly had witnesses. In one of the cases, a judge stepped in to halt violence with official sanction. Offenses to the father and uncle were claimed to be, and accepted as being, extensive to the defendant, as well as the offenses by the defendant were extensive to the offended family members. The same is true about family members of third parties who became involved in such quarrels. The participation of servants and slaves might have also been comprised within the scope of such “transitive property” of enmity. Moreover, assaults committed by servants and slaves certainly added to the narrative of public humiliation.

Even if the number of disputes with violent outcomes is higher in Santos’ file, and he might have been more of an aggressive character, such conduct was not significantly different from those recounted in other files of his fellow countrymen.

Santos also mentioned a number of aggressions perpetrated by non-group members. A civic officer committed one of them, allegedly under the influence of the defendant. The other was perpetrated by a butcher, and was included in the defense in order to make a case that the impeached parties were indeed defamed residents of the city. In fact, those brothers appeared to have some mental illness, as several culprits and the inquisitors themselves attest, although their father was a prominent jurist and one of the brothers attended the University of Coimbra. Only a few of these claims were investigated, when they referred to those who had actually accused the defendant.

A judicious researcher tends to look at these claims warily, particularly to its violent aspects. Defendants may have added such aggressive culmination to the incidents in order to magnify the severity of the dispute, and make a case before their adjudicators.

Witnesses confirmed that there was a kernel of truth on the accounts, but expressed reservations as to the accuracy of their details. In one case, the witness stated that he did not know “whether these were verbal or included knife strikes.” He claimed not having been present to the scene and having heard about it at the house of a New Christians, who according to him fled to Castile and died there. However, Amsterdam notarial records reveal that this runaway in fact escaped to Amsterdam. Hence, the reader may also doubt the veracity of the witnesses, whose testimonies most often were somewhat vague, as witnesses did not want to clearly side with either version. In the second case, the witnesses confirmed the quarrels around the auction and the beating with sticks by the public officers. However, they did not mention stabbing and, moreover, one of them did not recalled the impeached party ever being at the scene.

Even if many of these accounts were exaggerated, it does not mean that they were all entirely imaginary. In fact, notarial deeds from Amsterdam record a number of cases that resemble closely the accounts made in inquisitorial files. These cases involved recent émigrés of Jewish origin from Portugal. Were these manifestations of violence mere coincidences, calculated exaggerations or deep rooted social practices?

Much has been written about the ferment and fervent discords within the Amsterdam Sephardic community. However, most studies refer to such disputes around the community’s framework, establishment and authority, or with regard to Amsterdam Sephardim’s identity as a group. Less attention has been paid to the private acrimonious quarrels among its members, and to their social constraints and effects.

The affidavits about the brawl between Jacob Montesinos and the Veiga brothers point to striking similarity in both content – motivations, expression of anger, manifestations of violence, etc. – and style, in which such disputes were

narrated. Both this and other cases of interpersonal violence among Sephardic Jews in Amsterdam underline both the assumption and actuality of the transitive property of animosity.

Montesinos and the Veigas had business dealings, many common friends and dwelled, at least temporarily, in the same building. The latter were accused of bankruptcy fraud and embezzlement, or at least incompetence as agents. They were also blamed for being harmfully and aggressively inclined. Their sisters were said to be public prostitutes in the Southern Low Countries.

The affidavits were testimonies about the good reputation of the Veiga brothers, who were in prison for their debt at that time. The quarrels involved swords and knives, and promise to kill enemies through relatives. Vows to “bring all harm one could” on an adversary were either not as formulaic as Inquisition sources might suggest or were a topos in conflicts at the time. Sexual defamation was an important way to bring harm to an opponent, as well as other insults such as the “many other affronting words against the arrested parties and their sisters, which were very bad and scandalous, and are inappropriate to be brought before this Senate [City Council or Court].”

Family members were implicated in the squabbles and servants took part in it. Both this and other cases of private violence underline both the assumption and actuality of the transitive property of animosity. The involvement of authorities, such as those who imprisoned the Veigas, entailed greater offense. Third parties intervened in order to bring the opponents apart, and group members censured the aggressor, saying “that it was wrong to want to kill a man in that way,” meaning tied up. Moreover, a group member reminded him the consequences that such form of dispute could bring upon the group in general. He would have said to Montesinos “why he did so, why he made two honored men be arrested, and that he dishonored the [Portuguese Jewish] nation so.” In other cases, authorities also stepped in to halt altercations.

Both in Amsterdam and in Porto, those involved in these brawls were far from being marginal elements of the Western Sephardic Diaspora. Sources’ bias makes it difficult to establish what was the extent or the actual severity of these aggressive disputes. However, it is clear that some level of aggression was frequent.

The instances in which aggression occurred suggest that it was a reaction to the power of gossip and to gossip’s limits in securing social control through either collective action or official sanction. Gossip could bring much social and economic damage but not efficient social control.

BIBLIOGRAPHY

FRANCO, José Eduardo and ASSUNÇÃO, Paulo de. *As metamorfoses de um polvo: religião e política nos regimentos da Inquisição portuguesa (séculos XVI–XIX)*. Contains the full text of records of the Portuguese Inquisition. Lisbon: Prefácio Editora, 2004.

FRADE, Florbela Veiga. “Formas de vida e religiosidade na diáspora. As Esnogas ou casas de culto: Antuérpia, Roterdão e Hamburgo (Séculos XVI-XVII).” In *Cadernos de Estudos Sefarditas*, vol. 7 (2007), pp. 185-219.

GARCÍA-ARENAL, Mercedes and WIEGERS, Gerard. *Un hombre en tres mundos. Samuel Pallache, un judío marroquí en la Europa protestante y en la católica*. Madrid: Siglo XXI de España Editores, 2006.

GRANOVETTER, Mark. “The Impact of Social Structures on Economic Outcomes.” *Journal of Economic Perspectives*, v. 19, n. 1, pp. 33–50, Winter 2005.

GREIF, Avner. *Institutions and the Path to the Modern Economy: Lessons from Medieval Trade*. Cambridge: Cambridge University Press, 2006.

KAPLAN, Yosef. The Social Functions of the Herem in the Portuguese Jewish Community of Amsterdam in the Seventeenth Century. In: MICHMAN, Jozeph (ed.). *Dutch Jewish History*. V. 1. Jerusalem: The Institute for Research on Dutch Jewry, 1984, pp. 111–155.

MERRY, Sally Engle. “Rethinking Gossip and Scandal.” In: Daniel B. Klein (ed.), *Reputation: Studies in the Voluntary Elicitation of Good Conduct*, Ann Arbor: The University of Michigan Press, pp. 47–74.

SWETSCHINSKI, Daniel Maurice. “The Portuguese Jewish Merchants of Seventeenth-Century Amsterdam: A Social Profile.” PhD dissertation, Brandeis University, Waltham, 1979.

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

La Mala Sangre: daily violence within the Western Sephardic Diaspora
Daniel Strum, USP

Arquivos Nacionais – Torre do Tombo (Lisbon), Santo Ofício: Inquisição de Lisboa, processo 3418, of Manuel Rodrigues dos Santos.

Violence among New Christians in Porto recounted in inquisitorial files: The file of Manuel Rodrigues dos Santos

Brief chronology of the trial

- 13.12.1622 Record of Surrender to the Inquisition of Lisbon (*Auto de Entrega em Lisboa*)
- 02.01.1623 Genealogy Session
- 15.07.1624 *In Genere* Session – Negative¹
Defense: Impeachment articles and their investigation in Porto
- 10.06.1626 Torture Session: due to medical opinion, he was submitted to the *potro*, because he was asthmatic and could not undergo the *pole*. He remained “negative” under torture.
- 14.03.1627 Convicted as suspicious of heresy. Sentence: Abjuration *de vehementi* in the Auto-de-Fé and banishment of one year to Évora Monte (prison at the discretion of the Inquisition)
- 15.03.1627 Secrecy Stipulations (*Termo de segredo*)
- 22.03.1627 Release Stipulations (*Termo de soltura*)

¹ His interrogation *in genere* took place a long time after his first session.

Denouncers and Impeachment Articles:

Antônio da Costa (21.11.1621)

– the defendant claimed that the denouncer hated him

Simão Fernandes de Tovar (26.11.1621)

– the defendant claimed that the denouncer hated him

Catarina de Sena (27.04.1625)

– the defendant claimed that the denouncer's husband, uncle, brother, brother-in-law hated him. He also claimed that the accusation were false, because he was not in Porto but in Madrid at the time when he was supposed to have committed such "crimes."

1st List of Impeachment Articles (81 articles)

4 He [the culprit] will prove that Antonio da Costa and his wife, Isabel de Brito, and his father-in-law, Francisco de Brito, and Francisco Ribeiro and Sebastião Ribeiro, both uncle and cousin of the aforesaid [Antonio da Costa] and their wives and children are capital enemies of the defendant. The reason for the enmity arose when the defendant brought a consequential lawsuit at the royal civil court [*juízo do corregedor do civil*] in that city [Porto] against the aforesaid Francisco Ribeiro over a shipment of sugar that the defendant had sold to him. During the judgment, when the witnesses were heard at the home of the clerk André Pinto, the said Antonio da Costa was about to bear witness, standing before the doorstep of the said clerk. Then, the defendant said to him to mind how he swore, saying that he should not swear as his father-in-law, Francisco de Brito, who always swore falsely against the defendant, do. Over this issue, they exchanged bad words, blows and knife strokes. Many people came between. From that time on, both became deadly enemies, saying bad things about each other. For this reason, all the aforesaid [relatives of Antonio da Costa] became deadly enemies of the defendant, and their testimonies may not bring harm to him.

18 He will prove that Manuel de Andrade, resident in Porto, is his deadly enemy. The reason for their enmity is that, in 1615, he, the defendant, sold two shipments arriving from Brazil worth of 280,000 réis, which were laden on the ships whose masters were Frutuoso Gonçalves of Massarelos and Francisco Maio of

Matozinhos. The defendant agreed with the said Manuel de Andrade that he would transfer these shipments for the same price that they had cost in Brazil but the said Manuel de Andrade would shoulder the risk. After executing the sale and the agreement, the Turks robbed both ships and took them to Algiers. When the defendant demanded payment of both shipments from the said Manuel de Andrade, the latter did not want to pay, saying that he did not owe anything, since he did not receive these shipments, and that the defendant had deceived him because at the time of the sale, the defendant knew that the ships had been seized. The defendant and the said Manuel de Andrade had many arguments, great hatred and insults against each other. As a result, the said Manuel de Andrade felt affronted and publicly said that he would take revenge on the defendant from such words and insults, as well as from the money that the defendant took on account of the shipments. What is more:

19 He will prove that while the defendant was on the quays, at which the ships are unloaded in the said city of Porto, walking with the discharge clerk, Francisco Pais, the said Manuel de Andrade approached him with a sword in hand. The latter came together with a servant, who also held a sword. Andrade said that he had already paid the money of those shipments that he had sent to him, and that he was watching him closely, observing when he was going to swim, or where he went to and where came from, and other of such [threatening] words. The defendant replied, and the said Manuel de Andrade became very affronted, grasping his sword. The defendant did the same, and the said Francisco Pais came between. From then on, they became much more inimical, and therefore his testimony may not bring harm to him, the defendant.

27 He will prove that in 1617, during the yearly auction of the lease of the rights over the “entrances of the sea” [municipal duties on imports], of which the defendant was the leaseholder during the previous year, the aforesaid Antonio Cardoso Pereira, together with other enemies of the defendant, went to bid for the said rights on the public square where the royal judges and city council members were about to auction them off. The said Antonio Cardoso Pereira and his partners [in the bid] said some bad words about the defendant with regard to the conditions of the lease. Then, the said royal judges, the city council members and the city council clerk beat him [Pereira] with the sticks [which were ceremonially used in the auction] and stabbed him with daggers and had him arrested. As a result, the aforesaid Antonio Cardoso Pereira became very affronted and insulted, saying publicly that we would take revenge on the defendant for the offences that the royal judges, city council members and city council clerk had done to him, since the defendant was the cause of them [...]

29 He will prove that Simão Lopes Pinheiro, resident in the city of Porto, is his deadly enemy. The reason for their enmity is that the said Simão Lopes Pinheiro was at the home of Miguel Barbosa, burgher [civic title] and resident in Porto, where Antonio Rodrigues, father of the defendant, was also present. Both had doubts over gambling, and called each other insulting and affronting names, and through cards and candlesticks on each other. Simão Lopes Pinheiro became very offended and nurtured great hatred both against him, the defendant, and against his father.

31 He will prove that when the said Simão Lopes Pinheiro and the defendant's father met after the said quarrel next to the forecourt of the Saint Domenic Monastery of the said city of Porto, they drew their swords and stroke each other until many people came between and separated them. Yet they still tried to kill each other, slashing and fighting wherever they met each other owing to the great hatred they nurtured against each other.

32 He will prove that after Dr. Luis Pereira, royal criminal judge of the said city of Porto, heard about the said fights and hatred between the said Simão Lopes and Antonio Rodrigues, the defendant's father, who was his neighbor, and he stipulated penalties in money and years [of banishment] in Africa on the aforesaid parties so that they would not fight or argue with each other. The clerk of the criminal court, Serafim Correa, executed a warrant of such content.

36 He will prove that João Rodrigues Villareal and his wife and daughter, and Luis Antonio, his son-in-law, residents in the city of Porto, are his deadly enemies after a fight that Jeronimo Rodrigues, dubbed "mestre sala" [master of ceremonies], had with the impeached witness over certain doubts on the forecourt of the Saint Dominic Monastery in the said city of Porto. After calling each other names, the said Jeronimo Rodrigues called the said João Rodrigues Villareal cuckold [*cornudo*] publicly. The latter became very affronted. Many relatives and friends of him were present, and all of them came to help him to kill the said Jeronimo Rodrigues. The defendant was also there, together with Santos de Souza, burgher of the said city, and he came to help the said Jeronimo Rodrigues, and he supported and protected him from the said João Rodrigues and his relatives. The defendant brought him to his home and sheltered him in his office. As a result, the said João Rodrigues and the said Luis Antonio, his son-in-law, and all their relatives became public enemies of the defendant, saying that they would take revenge on him for the affront that the said Jeronimo Rodrigues had made to them and because he [the

defendant] supported and defended him, and prevented them to take revenge right away on the said Jeronimo Rodrigues [...]

49 He will prove that the Licentiate Tome Vaz and his sons Antonio Vaz, Diogo de Pina, Andre Nunes Pina², Tomas Nunes Pina, and his daughters Aldonsa Nunes and Catarina de Pina, and Paulo Lopes da Cunha, husband of the said Catarina de Pina, and Antonio da Fonseca Pina and Jeronimo da Fonseca Pina, nephews of the said Tomé Vaz, and first cousins of the aforesaid [sons and daughters of Tomé Vaz], all residents in the city of Porto, are his deadly enemies. The impeached witness Tomé Vaz brought a lawsuit against his [Vaz's own] son André Nunes Pina over alimony that his son demanded twelve or thirteen years earlier. The former expelled him from his home without providing him sustenance. For this reason, the said André Nunes went through much privation and appeared in the neighbors' homes asking them help. Once, the defendant counseled the said André Nunes, saying that one of his sisters, Aldonsa Nunes, was the cause of the said Tomé Vaz, his father, expelling him from home and not awarding him alimony. The defendant suggested he waited for a day when she would be out of home and then scared and threatened her so that she would not cause her father to hate him any longer.

50 He will prove that a few days after he gave such advice to the said André Nunes, the said Licentiate Tome Vaz went to relax next to [Douro] river together with his daughters. At night, he retired back home with them. Meanwhile, following the defendant's advice, the said André Nunes awaited his father and sisters, and stroke the head of one of them, Aldonsa Nunes, with a sword that he had borrowed from the defendant for this purpose. As a result, the said Aldonsa Nunes was in danger of death, and became very insulted, affronted and defamed.

51 He will prove that after the Licentiate Tomé Vaz and his sons, daughters, nephews and relatives got to know that it was the defendant who advised the said André Nunes to hit his sister, Aldonsa Nunes, and for this purpose lent him the sword. Hence, they complained about the defendant publicly and nurtured great hatred, declaring themselves his deadly enemies and proclaiming to take revenge on him for that affront in whatever way they could.

52 He will prove that while he, the defendant, let some sugar crates, which he had them washed, to dry, the said Antonio Vaz, Tomas Nunes, Diogo de Pina and André Nunes, sons of the said Tomé Vaz, stole two of the said crates. When the defendant found the shortage, he publicly complained about them, saying that they

² Interlined: "and dona Ana [Andre Nunes Pina's wife]."

were thieves who had stolen those two crates. After hearing about the insults, the said Diogo de Pina and Antonio Vaz came to call him to account, saying that it was only Tomas Nunes and André Nunes [and not all of them] those who had stolen his crates. The defendant became very angry and immediately beat and slapped the said Diogo de Pina and Antonio Vaz publicly, calling them thieves and other offensive names. For this reason, they and their relatives became very affronted and insulted, nurturing further hatred against the defendant.

53 He will prove that while the defendant was fighting against the said Antonio Vaz and Diogo de Pina over the theft of the said crates, a black [either a slave or a servant] of the defendant came behind them with a stick and hit the head of the said Antonio Vaz, who became even more affronted, as well as his relatives [...]

58 He will prove that a butcher hit with a beefsteak the snout [sic.] of the said Antonio Vaz, because he had been faultily informed Antonio Vaz had clothing made with a sum of 4,000 réis that the latter had judicially recovered from the butcher. For this and other reasons, Antonio Vaz was considered a defamed person in the said city of Porto, and therefore no credit was to be given either to him or to his brothers.

2nd List of Impeachment Articles:

3 He will prove that Antonio da Costa and Doctor Nicolau Lopes Vila Real, residents in the city of Porto, mentioned in the articles nos. 4 and 5 and following ones of his impeachments, are deadly enemies of the defendant. In addition to the reasons mentioned in those articles of impeachment, they were enemies for another reason. Once both Antonio da Costa and Nicolau Lopes were together, in 1616, according to his memory, outside the Postern of the Fountain of the Virtues of that city of Porto, mocking a certain Miguel Dias, uncle of the defendant, brother of his father. Miguel Dias was an imbecile and a madman [*mentecapto*], who lived at the home of the defendant on his expenses. When the defendant arrived and saw that the aforesaid impeached witnesses were mocking his uncle and abusing him, he fought against them and said very affronting words, insulting them greatly. The latter in turn called him drunkard, defamed and cuckold [*cornudo*], and said other offenses, which made him assault them. They came to blows, and as a result, the defendant became grazed and greatly hurt.

Investigation of the 1st List of Impeachment Articles in Porto on February 18, 1625:

- Manuel Cordeiro, half New Christian, minter, resident of Porto, of about 65 years of age

- Among the people mentioned in the article he knew only the defendant and Antonio da Costa and his wife, Isabel de Brito, and his father-in-law, Francisco de Brito.
- He was aware that “[fol. 13 of the investigation] the defendant brought a lawsuit over a shipment of sugar against Francisco Ribeiro, from this city, before the royal civil court, and that Andre Pinto was the clerk of that cause. The witness was informed that over such lawsuit, the defendant had differences with Antonio da Costa, but the witness does not know whether these were [merely] verbal or included knife strikes, because he was neither present nor heard it, but he only heard about it from other people. Asked if he remembered the quality of such differences and the names of the persons who had told him such, he said that he does not remember, but that he heard that being told at the house of João Cardoso, who was of the nation of the New Christians and is said to be deceased in Castile, to where he fled at the time of the [great] imprisonment [in Porto]³, about six years earlier. The witness further said that the defendant and the said Antonio da Costa did not talk to each other, and did not say further about this article.”

Investigation of the 3rd list of impeachment articles in Porto on December 10, 1625 (including a few articles of the 1st list):

- 7 - Afonso Cardoso, burgher of Porto, of about 60 years of age:
- He knew the defendant since the latter was a child, and knew that he was a merchant.
 - About art. no. 27, he said that: “[p. 8] he, the witness, was a city council member [*vereador*] in this city, in the year in which the defendant wished to win the bid over the lease of the “entrances of the sea and the land,” of which the defendant was the leaseholder the previous year. Wishing to lease it again, the defendant bid an offer. Seeing that other people were also bidding, the royal judge, who wanted to favor the defendant, hit with a stick one of

³ He actually fled to Amsterdam, where he became Eliahu Uziel.

the bidders, favoring therefore the defendant, but the witness does not know the impeached party even though he heard that all of them [bidders] had differences among themselves, and did not say further.”

8 - Antonio Pereira, burgher of Porto, factor of the customs house, of about 42 years of age:

- He knows the defendant for 15 years, since the latter was a merchant and attended the customs house.
- Regarding art. no. 27, he said that “[p. 9] he knows Antonio Pereira Cardoso or Antonio Cardoso Pereira, who is the impeached party, very well, and remembers that in the mentioned auction there were differences between the defendant and the other bidders, but he does not remember the impeached party, Antonio Cardoso Pereira, being present when such differences and the end of the auction took place. The royal judge did hit one of the bidders with a stick, but he does not remember who was this. He did not say further about the article, except that he knew that because he was present at the time, when he served the office of representative [*procurador*] of the city [to the court]”.

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

La Mala Sangre: daily violence within the Western Sephardic Diaspora
Daniel Strum, USP

Arquivos Nacionais – Torre do Tombo (Lisbon), Santo Ofício: Inquisição de Lisboa, processo 3418, of Manuel Rodrigues dos Santos.

Violence among New Christians in Porto recounted in inquisitorial files: The file of Manuel Rodrigues dos Santos

1.^{as} Contraditas

"[s/n] [p.1][cabeçário]

4 Prov. q ant.^o da costa e sua molher Jzabel de britto e seu sogro fr.^{co} de britto, e fr.^{co} de ribeiro e sebastião ribeiro ambos thios e primos do sobredito e suas molheres e f.^{os} são inimigos capitais delle R. e a rezão de sua inimizade he, porq trazendo elle R. huã demanda m.^{to} importante na ditta cidade no iuizo do c.^{or} do civil cõ o sobredito fr.^{co} ribeiro sobre huã carregasão de asuqueres q elle R. lhe tinha vendido, e estando o feito em lugar de prova e tirandosse as t.^{as} em caza de andre pinto escrivão estando o dito ant.^o da costa por testemunhar a porta do dito escrivão elle R. lhe disse q attentasse como iurava e q não como seu sogro fr.^{co} de britto q em tudo iurava em falso contra elle R. e sobre isso tiverão mas palavras elle R. e o dito ant.^o da costa e vierão as panquadas e cutiladas a q acudio m.^{ta} gente e dali por diante ficarão sempre inimigos capitais dizendo mal hũ ao outro pella qual rezão todos os [p. 3] sobreditos fiquão sendo inimigos capitais delle R. como em effeito o são e lhe não podẽ prejudicar seus testemunhos

18 Provara q m.^{el} de andrade m.^{or} na cidade do porto he inimigo capital delle R., e a rezão de sua inimizade he, q elle R. vendeo no anno de 615 duas cargasõis q vinhão do Brazil q importavão duzentos e oitenta mil r's, as quouis vinhão nos navios em que vinhão por mestre frutuozo glz' de Massarelos, e do outro fr.^{co} maio de Matozinhos, e se consertou elle R. cõ o dito M.el de andrade q lhe daria as ditas cargaõis pello mesmo q custarão no Brasil e q o risco corresse pello dito M.^{el} de andrade depois da qual venda e contrato socedo roubarẽ os turquos as ditas duas naos e levarãoas a Argel e pedindo elle R. a paga das dittas carregasões ao dito m.^{el} de andrade lhas não queria pagar dizendo q lhe não devia nada pois não resebera as ditas carregasõis, e q elle R. o enganara porq sabia ao tempo da venda q as ditas

naos erão roubadas sobre o q o dito R. e o dito m.^{el} de andrade tiverão m.^{tas} brigas, e grandes odios e palavras de parte a parte affrontozas de q o dito m.^{el} de Andrade se deu e dava por m.^{to} affrontado, e dizia publicamente se avia de vingar delle R. assi das palavras, e iniurias q lhe disserão, como do dr.^o q elle R. lhe levara pellas ditas carregasões allem do q.

19 Provara q estando elle R. nos cais da descarga das naos da dita cidade do porto passeando cõ o escrivão da dita descarga fr.^{co} pais chegou a elle o dito m.^{el} de andrade cõ a espada apunhada [p. 10] cõ hũ criado seu outrosi cõ espada lhe disse q pois lhe tinha ia pago o dr.^o das carregasões q lhe tinha mãdado q porq o andava espeitando quando hia nadar, ou p.^a onde hia, ou vinha, e outras palavras a q elle R. respondeo ao dito m.^{el} de Andrade cõ q ficou m.^{to} affrontado e corrido e apunhou da espada, e elle R. fes o mesmo e o dito fr.^{co} pais se meteo no meio ficando dahi per diamte m.^{to} mais inimigos pello q seu testemunho não pode periudicar a elle R.

27 Provara q pondosse as rendas das entradas do mar da dita Cidade do porto em pregão o ano de 617 q elle R. trazia do anno dantes o dito ant.^o Cardozo pr.^a acumulado cõ outros inimigos delle R forão fazer lanso na dita renda a prassa publica aonde o C.^{or}, juis de fora, v[e]readores da dita Cidade estavam p.^a arrematar a dita renda, e porq sobre as condisõis della o dito ant.^o cardozo pr.^a e seus companheiros largarão alguãs palavras contra elle R, e o dito C.^{or}, iuis, e v[e]readores e escrivão da camara lhe derão cõ as varas m.^{as} panquadas e punhaladas e o mandarão prender de q o sobredito ant.^o cardozo pr.^a ficou m.^{to} affrontado e iniuriado dizendo publicamente se avia de vingar delle R. pella maneira q pudesse das affrontas q o C.^{or}, iuis [p. 14] e v[e]readores, escrivão da camara lhe fizerão pois elle R. fora cauza dellas allem do q.

29 Provara q simão lopes pinheiro m.^{or} na cidade do porto he inimigo capital delle R. e a rezão de sua inimizade sera q estando o dito simão lopes pinheiro em caza de miguel barboza cidadão e m.^{or} na cidade do porto aonde outrossi estava ant.^o roiz' pai delle R. e vierão sobre certas duvidas q no iogo tiverão a tomarsse hũ cõ o outro a chamarêsse de nomes affrontozos e iniuriozos e a tirar cõ as cartas e castissais do q o dito simão lopes pinheiro ficou m.^{to} affrontado e querendo dahi em diante grande mal a elle R. e tendo lhe grande odio e ao dito seu pai.

31 Provara q encontrandosse o dito simão lopes pinheiro cõ o dito pai delle R. depois das ditas brigas iunto do adro de S. d.^{os} da dita cidade do porto arranquarão das espadas e se acutilarão ate q acodio m.^{ta} gente q os apartou e procurandose matar hũ ao outro acutilandose e buscando tornarão a brigar, E andar as cutiladas q forão onde quer q se encontravão pello grande odio q se tinham

32 Provara q sendo o d.^{or} Luis p.^{ra} C.^{or} do crime da dita cidade do porto sabendo das brigas e odios em q o dito simão lopes tinha com dito ant.^o roiz pai delle R. andavão por ser seu vizinho pos pena de dr.^o e annos de Affrica dos sobreditos q não brigassẽ mais nẽ entendessẽ hũ cõ o outro de se fes termo pello escrivão do crime Serafim correa

36 Provara q João Roiz' Villareal e sua molher e f.^a e luis ant.^o seu cunhado m.^{ores} na cidade do porto são inimigos capitais delle R. porq. tendo Jeronimo roiz' mestre sala brigas avera onze ou doze anos cõ o dito cõtraditado sobre certas differensas q tiverão iunto ao adro de S. D.^{os} da dita cidade do porto, e vindosse a travar de palavras hũ cõ outro o dito Jeronimo roiz' chamou o cornudo publicamente ao dito João roiz' de q ficou m.^{to} affrontado e porq ao dito estavam parentes algũs parentes [sic.] e amigos do dito João roiz', acudirão todos em seu favor p.^a matar o dito Jeronimo roiz' o q vendo elle R. q tãobem estava presente cõ Sanctos [p. 18] de Souza, cidadão da dita cidade, acudirão em favor do dito Jeronimo roiz', e o ampararão, e defenderão do dito João roiz' e seus parentes e o trouxe elle R. p.a sua caza e o recolheo no seu escritoreo, do q o sobredito João roiz' e o dito Luis antonio seu cunhado e todos seus parentes ficarão inimigos publicos declarando delle R. e dizendo q avião de vingar delle R. da affronta q o dito Jeronimo roiz' lhe fizera pois o amparava e defendia e impedira tomarẽ logo vingansa do sobredito Jeronimo roiz' alem do q.

49 Provara q o L.^{do} thome vas, e seus f.^{os} ant.^o vas, diogo de pina, andre nunes pina⁴, thomas nunes pina, e suas f.^{as} cn.^a de pina, aldonça nunes, catarina de pina e paulo lopes da cunha marido da dita cn.^a de pina, e ant.^o da fonseca pina e Jeronimo da fonseca pina sobrinhos do dito thome vas e primos cõ irmãos dos sobreditos todos m.^{ores} na cidade do porto são inimigos capitais delle R., porq' trazendo o contraditado thome vas demandas cõ o dito seu f.^o andre nunes pina sobre alimentos q o dito seu f.^o lhe pedia avera doze ou treze annos lansandoo de caza sã lhe dar sustentação pella qual rezão o dito andre nunes passara m.^{tas} necessidades e se metia por caza dos vizinhos a pedir lhe o ajudasse a sustentar elle R. aconselhou ao sobredito andre nunes q pois a sua irmã aldonsa nunes era a cauza do dito thome vas seu pai o lansar de caza e lhe não dar alimentos a esperasse hũ dia q fosse fora da caza e lhe puzesse e fizesse [p. 23] medos e amessas p.^a q mais o não odiasse cõ o dito seu pai.

⁴ Interlined: “e dona anna [mulher de Andre Nunes Pina].”

50 Provara q indo o dito L.^{do} thome vas poucos dias depois do conselho q elle R. deu ao dito andre nunes, folgar ao Rio cõ as ditas suas filhas e recolhendo de noute p.^a caza cõ ellas, o dito andre nunes pello q elle R. lhe tinha aconselhado foi esperar ao dito seu pai e irmãs e deu huã cutilada na cabeça a huã dellas q he aldonsa nunes cõ a espada q pedio emprestado a elle R. p.^a esse effeito, de q a dita Aldonsa nunes esteve em perigo de morte, e ficou m.^{to} iniuriada e affrontada e infamada.

51 Provara q sabendo o dito L.^{do} thome vaz seus f.^{os} e f.^{as} e sobrinhos e parentes q elle R. aconselhara o dito andre nunes desse na dita sua irmã aldonsa nunes, e p.^a isso lhe emprestara a espada se queixarão publicamente dele R. e lhe ficarão querendo grande mal e declarandose por seus inimigos capitais e protestando de se vingarê delle R daquela afronta pelo modo q pudessẽ

52 Provara q tendo [estando] elle R. a enxugar certas caixas de asuquar q mandou lavar, os ditos ant.^o vas, thome nunes, diogo de pina e andre nunes irmãos f.^{os} do dito thome vas lhe furtarão duas das ditas caixas, e achandoas elle R. menos se queixou publicamente delles dizendo q erã hũs ladrõis q lhe avião furtado as ditas duas caixas, o q ouvindo o dito diogo de pina, e ant.^o vas vierão ter satisfação cõ elle R. dizendo [p. 24] q os tidos seus irmãos thomas nunes e andre nunes forão so q furtarão as ditas caixas a elle R., de q elle R. se agastou m.^{to} e logo espancou e esbofeteou publicamente os sobreditos diogo de pina e ant.^o vas e lhes chamou de ladrõis e outros nomes m.^{tos} affrontosos de q assi elles como todos os ditos seus parentes ficarão m.^{to} affrontados e iniuriados querendo de novo m.^{to} mal a elle R.,

53 Provara q estando elle R. peleando cõ os ditos ant.^o vas e diogo de pina sobre o furto q lhe fizerão das ditas caixas veio por de tras huã negra delle R. e deu cõ pao na cabeça ao dito ant.^o vas de q ficou m.^{to} mais affrontado e os ditos seus parentes e viria depois disto sempre m.^{to} iniuriado e envergonhado e ficarão sendo dahi em diante assi elle como o dito seu pai e irmãos e irmãs e parentes em maior odio a elle R. como era couza publica na dita cidade

58 Provara q hũ carniseiro deu hũ dia no asougue cõ huã posta de carne nos fosinhos ao dito ant.^o vas por lhe ser mal ensinado de q o dito ant.^o vas lhe andou huã iniuria e delle levou ao dito carniseiro quatro mil r's por iustisa foi condemnado de q fes hũ vestido pella [p. 26] qual cauza e per outras era tido na dita cidade do porto por pessoa infame e como tal lhe não davão nẽ aos ditos seus irmãos nenhũ credito.

2.^{as} Contraditas:

3 Provara q. ant.^o da costa e o d.^{or} nicolau lopes villa real m.^{ors} na ciade do porto contraditados nas contraditas delle R. aos artigos 4.^o e 5.^o, cumsegg. são inimigos capitais do R. alem das mais rezõis allegadas nas ditas contraditas porq estando ambos iuntos, o dito ant.^o da costa, e nicolao lopes no ano de 616, segundo sua lembrança, fora do postigo da fonte das virtudes na dita cidade fazendo zombarias de hũ miguel dias thio delle R. irmão de seu pai tonto e mentecapto a quem elle R. tinha em caza, e sustentava [p. 3] e chegou elle R; e vendo q os sobreditos contraditados estavam zombando do dito seu thio miguel dias e o tratavão mal peleiou cõ elles, e lhe[s] disse palavras m.^{to} affrontozas e os iniuriou m.^{to} e os sobreditos chamarão a elle R. bebado, infame, cornudo, e lhe disserão outras iniurias pollas quais elle R. se arremessou a elles e vierão as panquadas de q elle R. ficou escalavrado, e m.^{to} maltratado

Inquirição dos artigos das 1.^{as} contraditas no Porto a 18.02.1625:

- Manuel Cordeiro, meio cristão novo, moedeiro, morador no Porto, de 65 anos pouco mais ou menos:
- das pessoas citadas no artigo conhecia somente ao réu e a Antonio da Costa, sua mulher Isabel de Brito e seu sogro Francisco de Brito. Disse que teve notícia que o “[f. 13 da inquirição] Reo trouxera uma demanda com Francisco Ribeiro desta cidade no iuizo do C.^{or} do civil de q hera escrivão Andre Pinto sobre huã carregação de assucares por acasião da qual demanda teve noticia elle test.^a que tivera o Reo differenças com o dito Antonio da Costa, mas não sabe elle test.^a se forão de palavras, se de cutilladas, porquanto senão achou presente, nem ouviu, mas som.^{te} o ouviu a alguãs pessoas e perguntado se se lembrava da qualidade das differenças e dos nomes das pessoas a quem ouvira contar, dise q se não lembrava mais q de o ouvir contar em casa de João Cardoso já falecido home da nasção dos christãos novos, q se dis ser morto em Castella para onde se foi no tempo da prizão, haver a cousa de seis anos, e disse mais elle test.^a q o Reo com o dito An.^{to} da Costa não corrião, e al não disse deste [artigo].”

Inquirição dos artigos das 3.^{as} contraditas no Porto a 10.12.1625:

- Afonso Cardoso, cidadão do Porto de 60 anos, pouco mais ou menos:
- conhece o réu desde menino e que era mercador e tratava e negociava
- sobre o art. 27: disse que “[p. 8] sendo elle t.^a Veredor nesta cidade naquelle ano Em q o Reo pretendeo a Renda das entradas correntes do mar E da terra [sic.] a q.^l Elle Reo trouxera o ano atraz querendo a tomar outra vez lançara nella E vendo

outras p.^{as} q t@bem lançavão na dita Renda o C.^{or} q Ent@ Era querendo favorecer ao Reo dera cõ a vara a huã das p.^{as} q lançavão na Renda favorescento nisso ao Ro mas q elle t.^a n@ conhece ao contraditado p.^{lo} nome ainda q Elle t.^a ouvio dizer q Elles todos @tre si tiverão diferenças E al não disse.”

8 - Antonio Pereira, cidadão do Porto, feitor da alfândega, de 42 anos, pouco mais ou menos:

- conhece o réu há cerca de 15 anos e que era mercador e tratava e negociava nesta cidade e na alfândega

- sobre o art. 27: disse que “[p. 9] conhece m.^{to} bem a Ant.^o pr.^a cardoso ou Ant.^o Cardoso pr.^a contraditado E q se lembra q no lançar E Rematar das Rendas de q o auto faz menção ouve diferenças Entre o Reo E outras p.^{as} q lançavão nellas mas q senão lembra q Estivesse presente a tais diferenças E Rematação o Contraditado Ant.^o Cardoso pr.^a E q o C.^{or} desta cidade se levantou e deu cõ a vara Em hũ dos q querião fazer lanço nas Rendas mas q elle t.^a se não lembra de quẽ era o Em quẽ o C.^{or} deu Com a vara e al não disse nẽ sabe E o q declarou sabe Elle t.^a por ao tal tempo estar presente E servir o cargo [p. 10] de Procurador da cidade.”

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

La Mala Sangre: daily violence within the Western Sephardic Diaspora
Daniel Strum, USP

Stadsarchief Amsterdam (SAA), Archief van de Notarissen ter Standplaats Amsterdam (5075), notaries public Nicolaes and Jacob Jacobs, book 379

Violence among Portuguese Jews in Amsterdam registered in notarial records: The case of Montesinos against the Veigas brothers

[July 7, 1616][fol. 415]¹

Luis Vaz 29 years old, Felipe Lopes, 27 years, Estienne Senton, Frenchman, 31 years old, said the following: Luis Vaz said that on last Sunday when he has on Breestraat he saw a rush of Portuguese people. When he got closer, the witness saw Jacob Montesinos running back home with a bare sword in his hand followed by his retainer holding a stick. The people who were there told him that Montesinos and his retainer had run after João da Veiga, and that many people censured him, saying that it was wrong to want to kill a man in that way. Felipe Lopes said that he also saw Jacob Montesinos holding a bare sword in his hand while retiring home / Felipe Lopes said that on Monday, João da Veiga passed by the doorstep of Jacob Montesinos, and exchanged bad words with Montesinos' wife. The witness heard her saying many times that he was the brother of some whores, because of which they [the Veigas brothers] moved from Antwerp to Brussels. Luis Vaz also heard the same names being called from her mouth. Luis Vaz and Estienne Senton were present at [moment of] the arrest of João da Veiga and his brother Simão da Veiga, when they heard Jacob Montesinos say to the wardens [*dreflyers*] [fol. 415v.] to arrest "these thieffy dogs," calling them thieves many times and saying that he wanted them to be arrested as such ["thieffy dogs"]. Luis Vaz asked the wardens in Flemish [i.e., Dutch] not to take those men like that, tied up. He also said that he knew them for a long time, and they were good men. Jacob Montesinos replied: "you do not take anything else but thieves." One of the wardens had seized from João da Veiga a small dagger, which Montesinos grabbed from the warden's hand, and ran furiously towards the prisoners laughing: "Oh thieves, I will kill you!" And he would have stroke them with the dagger, in spite of them being already

arrested and tied up if the witness and other people had not prevented it with their own hands, to which he resisted furiously. Estienne Senton said that he was at the home of the [Veigas] brothers for half an hour before Montesinos arrived with the wardens. Seeing that Montesinos wanted to walk up the staircase furiously, but not seeing the wardens yet, the witness came along to protect the sister of the young men against any aggression. After seeing that, Montesinos hit and pushed her with his hand and mistreated her. Because the witness told the wardens not to arrest the brothers, Montesinos did not stop to yell: “Arrest them, because they are thieves, thieves are they, arrest them.”

[Signatures*]

[fol. 381] ²

18 July

Gaspar de Burgos, 70 years old, Fernão d’Alvarez Melo, 47 years old, Mateus Rodrigues, 60 years old, and João Gonçalves, 27 years old, all approximate ages and all Portuguese merchants, appeared before the notary at the request of Simão and João da Veiga, arrested in the prison of this city [Amsterdam]. First, the said Fernão d’Alvarez Mello stated that it was true that on the day that the producents [those at whose request the affidavit was executed] were arrested, he, the witness, was present, and he asked Jacob Montesinos, who had caused their arrest, why he did so, why he made two honored men be arrested, and that he dishonored the [Portuguese Jewish] nation so. Montesinos answered that he did not cause the arrest of anyone but of two thieves, who he will have lashed and banished. He was also willing to go to Antwerp to produce a certificate about their sisters’ identities, and many other affronting words against the arrested parties and their sisters, which were very bad and scandalous, and which are inappropriate to be brought before this Senate [City Council or Court]. The witness reprehended him, saying that if he were to be summoned with regard to this cause, he would testify the truth. The said Gaspar de Burgos said that before they were arrested, Montesinos had said to him that he would cause Simão da Veiga go bankrupt, and that Simão da Veiga had stolen a large sum of money from João Gonçalves, but the latter kept silent in order to

* The translated records were organized chronologically, according to the date of when each testimony was registered; whereas the Portuguese transcripts follow their sequence along the pages of the notary public’s book. Undated statements were kept according to the pagination order in the English version as well.

protect his honor. That is what the witness said about the producers' credit. With regard to their sisters, Montesinos said to the witness that he would go to Antwerp to bring a certificate that those sisters were whores [*putas*]. The said Mateus Rodrigues said that today, on this day, he heard Montesinos asking Antonio Nunes Torres to tell João Gonçalves that Simão da Veiga was about to go bankrupt, and that he also said that [fol. 381v.] he would bring all harm he could on them on the account of a boy [retainer] that he took away from him. The said João Gonçalves said that many days prior to the producers' arrest, Antonio Nunes Torres came to warn him, on behalf of Jacob Montesinos, against Simão da Veiga, who was about to go bankrupt. When the witness asked Montesinos why he defamed Simão da Veiga, he answered that he would bring him all harm he could because he had taken away a retainer. // The witness further said that he had been his [Simão da Veiga had been Gonçalves'] cashier [agent] and that much money was entrusted to him, on which proceeds he always reported well without any default. And so all witnesses said that they knew the said Simão da Veiga and considered him a peaceful and honored man, etc. July 18, 1616

[Signatures]

Francisco da Costa, about 22 years old, and Antonio Nunes Torres, about 44, said the following: Antonio Nunes Torres said that a few days prior to the arrest of the said Veigas, Jacob Montesinos told him that Simão da Veiga had sold some merchandise below the price that they had cost, and that he understood that he will not report well about his dealings. Although Montesinos did not speak with João Gonçalves, he was his friend, and understood that Veiga owed money to Gonçalves, saying to the witness to let him [Gonçalves] know on his behalf [Montesinos] in order to consider how to proceed with him. The witness said so to the João Gonçalves but said nothing beyond what Montesinos himself had told to him.

Francisco da Costa said that at the time [fol. 382] Montesinos retired home, after he had run with a sword after João da Veiga, the witness heard Montesinos' wife screaming a lot, swearing many oaths and saying that the Veigas were bad men and that their sisters were public whores. Montesinos' wife said further that she would have the Veigas killed through a brother of her. Sebastião Nunes, about 38 years old, said that today he heard Montesinos say, in the presence of João Gonçalves and Mateus Rodrigues, that he had asked Antonio Nunes Torres to warn João Gonçalves about Simão da Veiga, who Montesinos understood to be about to go [abscond]

and take some of what he had retrieved [on Gonçalves' behalf], and would not report properly the proceeds

[Signatures]

Jorge Vaz Pereira, about 22 years old, said that more than two months prior to the arrest of the Veigas, the witness went to the house of Jacob Montesinos to ask him about Simão da Veiga, and Montesinos told him that he [Veiga] had left the country. While they spoke about it, Manuel Rodrigues da Veiga, brother of the said [Simão da] Veiga, arrived there, and wanted to walk up to the home of his brother, but was obstructed by Montesinos, who said that all that belonged to him [Veiga] was judicially seized

[Signatures]

[fol. 403]³

Mateus Rodrigues, about 60 years old, Fernão Alvares Mello, 36 years old, and Diogo Gomes da Costa, 28 years old, all approximate ages, said at the request of João da Veiga, arrested party, that the witnesses know very well that the said prisoner came here [Amsterdam] from Antwerp in order to see his sister after learning that she was alive, because he had not seen her for a long time, since [she?] was in Spain, and they understand that the aforesaid about him, namely that he came in order to beat Jacob Montesinos is false, July 25, 1616

[Signatures].

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

La Mala Sangre: daily violence within the Western Sephardic Diaspora
Daniel Strum, USP

Stadsarchief Amsterdam (SAA), Archief van de Notarissen ter Standplaats Amsterdam (5075), notaries public Nicolaes and Jacob Jacobs, book 379

Violence among Portuguese Jews in Amsterdam registered in notarial records: The case of Montesinos against the Veigas brothers [fol. 381]

18 Julio

Paresere' ettç.^a Gaspar de burgos de ydade de 70 anos, fernaõ dalvarez mello de 47 anos ~~Antonio nunez torres~~ matheo rodrigues de 60 anos E João goncales de ydade de 27 anos[,] todos pouco mais ou menos[,] mercadores portugueses, os quais de pedimento E requisição de Symao E João da veiga[,] presos na carsel [sic.] desta Cidade disseram E affirmarão ser Verdade primeiramente ho ditto fernando alvarez mello que no dia que prenderão os ditos producentes elle tes.^a se achara presente, E que elle test.^a dixe a ez

Jacob montesinhos ho qua los ~~mand~~ fez prender, Porque fasia tal E porque fasia prender dous home's honrrados E que assi deshonorava a nação, E ho ditto montesinhos lhe respondera que elle não prendera senão dous ladrões, E que os avia de faser asoutar E bandir [sic.] fora da terra, E dispois avia de yr a Emver [Anveres] a buscar certificação de quem suas yrmãs erão E outras muytas pallabras ynjuriosas contra os presos E Contra as ditas suas yrmãs, muy escandalosas E ruins E não dinas de Vir a este senado, E elle test.^a ho reprendeou E se apertou [sic.] delle, disendo quando fosse chamado para esta Causa que diria a Verdade, ho ditto Gaspar de burgos disse, que antes de serem preso [sic.] os dittos producentes[,] ho ditto montesinhos disse a elle test.^a que elle ordenaria Con que simão da veiga fisesse banco rotto ~~E que av~~ E que ho ditto simão da veiga avia roubado a João goncales hua granda [sic.] suma de dinheiro // E que por sua honra se Calava ho ditto João goncalvez E ysto tocante a seu Credito, E no tocante as suas yrmãs declara elle test.^a que ho ditto Jacob Montesinos lhe disse que elle yria a

ember a traser certidão de que a as dittas suas yrmãs são putas /: ho dito mateo Rodrigues disse que oje neste dia elle test.^a ouviu diser a ho ditto montesinos que elle avia ditto a Ant.^o nunes torres que fosse diser a João goncales como Simão da veiga avia de faser banco Roto, e que tambe' avia ditto que em tudo ho que pudesse

[fol. 381v.]

lhe avia de faser mal, por lhe aver tirado hum moco [moço], ho ditto João goncalo disse, que muytos dias antes que os dittos producentes forão presos ~~ho dit~~ Antonio nunes torres lhe fora avisar de parte de Jacob Montesinos que elle test.^a se guardase de Simão da veiga Porque avia de faser banco roto, E Pregundando ~~então por e~~ elle testem.^a a ho ditto Montesinos porque ~~lhe~~ disfamava assj ho ditto Simão da veiga lhe respondeu que lhe avia de faser quanto mal pudesse porque lhe avia tirado um moço de Casa // E disse elle test.^a mais a sido seu Caixeiro E que muyto din.^{ro} seu entrara na mão, E que sempre lhe dera muy boa Conta, sem lhe faltar nuqa [sic.] nada, e assi todas as test.^a Conhecão [sic.] ho ditto simao da veiga por home' quieto e honrado/ ettça 18 de Julho 1616 [Signatures]

Francisco da Costa de y.^{de} de 22 anos pouco mais ou menos, Antonio nunes torres de 44 anos tambe' pouco mais ou ms' disserão a saber ho ditto Ant.^o nunez que alguns dias antes da prisão dos dittos Veigas, Jacob Montesinos lhe dissera que Simão da veiga vendia alguãs fazendas a menos preço do que ~~valia~~ lhe Custavão, E que entendia delle não daria boa Comta de si E que ho ditto montesinos não falava cõ João goncalves mas que era seu amigo que avia entendido lhe devia din.^{ro} requerendo que elle test.^a lho fisesse a saber da sua parte, para se saber governor cõ elle, E isto disse elle test.^a ~~a g. o~~ a João goncalvez E não outra Cousa, que ~~he~~ o proprio que Montesinos disse /: ho ditto Francisco da Costa disse que no t.^{po} que ho d.^o

[fol. 382]

Montesinos se recolhera para Casa avendo Corrido cõ a espada atras de João da veiga, elle test.^a ouvira gritar muyto a mulher do ditto Montesinos disendo E jurando muytos Jura.^{tos} de que os dittos Veigas são ~~ru~~ home's ruins E que as suas yrmãs são putas pub.^{cas} / E mais que a ditto mulher disse que faria matar os dittos Veigas por hum yrmão ~~sua~~ seu que tinha / Sebastião nunes, de ydade de 38 anos pouco mais ou meno [sic.] disse que oje ouvira diser a Jacob Montesinos ~~que~~ em presenca de João goncalves e

mateo rodrigues que avia ditto a Antonio nunez torres que fosse avisar a João goncales que Entendia que ho ditto symão ~~das~~ da veiga se avia de yr E que avia de levar alguã Cousa do que por elle tenha Cobrado, E que não avia de dar boa Comta de sj, ~~E dantes alguãs Veses fallando nelle lhe fisesse ele test.^a por cobra huã divida que ho ditto da Veiga lhe deve por que entedia que se avia de yr, etteça~~ [Signatures]

Jorge vaz Pereira de ydade de 22 anos pouco mais ou menos, disse que mais de dous meses antes que os dittos Veigas forão presos, yndo elle testem.^a perguntar em casa de Jacob montesinos por symão da veiga, dixerá ho ditto montesinos que era ausentado da terra, E estando fallando nisto cõ elle veio la manuel rodrigues yrmão do ditto veiga E querendo subir arriba a Casa do ditto seu yrmão lo ympidiu ho ditto montesinos, dizendo que todo ho seu estava embargado por Justiça [Signatures]

[fol. 403]

Matheo Rodrigues de ydade de 60 anos[,] fernando Alvarez mello de 36 anos E diogo gomes da Costa de 28 anos[,] todos pouco mais ou menos, dixerão por requerimento de João da veiga preso, que sabem elles test.^a muyto bem, que ho ditto preso veio de emvez aqui a Ver sua yrmã, sabendo que estava Viva por que avia myto t.^{po} que a não Via por aver ydo a espanha, ~~E assi~~ E ho que entende' ~~que se~~ que ho se dis atraz delle de que Veo a espancar Jacob Montesinos he falço, 25 de Julho de 1616 [Signatures].

[fol. 415]

Luiz Vaz de ydade de 29 anos, felippe lopez de 27 anos[,] estienne senton[,] francez 31 anos, disserão a saber luiz vaz que domingo passando sendo na bree strate [sic.] viu' huã Corrida de portugueses E chegando elle test.^a Viu que Jacob ~~mansin~~ montesinhos vinhão [sic.] cõ huã espada nua e seu moco [moço] cõ pao Corria ~~atras de~~ nas mãos recolhido para sua Casa, E que se ovio diser a gente que la estava que ho ditto montisinhos E seu moço avião Corrido atraz João daviega, E que toda a dita gentes [sic.] lhes derão muyta Culpa, disendo que era muy mal feito de querer assj matar hu' home'/ E ho ditto felipe lopes dis que tambe' Viu recolher ho ditto Jacob Montesinos co' a espada nua na mao/ ho ditto felipe lopez dis que na segunda feira passando ho ditto João da veiga pella porta do Jacob montesinhos E que tivera pallabras cõ a mulher do ditto montesinos ovio elle testem.^a que a ditta mulher lhe chamou por muytas veses / ~~hia~~ que era yrmão de huãs putas, que por taes avião hido de ambers p.^a bruxelas esses nomes ouviu tambe' por

veses da boca da d.^a mulher ho d.^o luiz vas ho qual cõ ho ditto estremme sentão dixe que estiveram presentes a prisão do ditto João da veiga E seu yrmão Symão da viega E que ouvirão que ho ditto Jacob montesinos dixo a os drefleyers prenderme

[fol. 415v.]

esses que perros ladrõis ~~que~~ ho qual dixe muytas Veses chamando os ladrois E querendo que por taes fossem presos / E Como ho ditto Luiz Vaz requereu aos dittos difleyers em framengo que não levassem assj aqueles omes attatos [sic.] E daquela manera E que os conhecia por home's de bem de muyto tempo respondera ho dito Jacob montesionhos não não levas os que não são senão ladrõis / E Como hu'm dos difleyers tinha tomado hua daga piquena que ho ditto João da veiga trasia / Tomou ho d.^o montesinhos a dita daga da mão do difleyers correndo cõ furia para os presos driemdo, ha ladroeis que vos ej de matar E os ouvera dado cõ a dita daga sendo elles ya presos E attados se elle t test.^a e outrem não ho ouverão empedido cõ lhe ter a mão E resistir por muyta foria / ho ditto estiene sentão dixe que se achou em casa dos dittos yrmaos onde avia estado cousa de meia hora antes que ho dito montesionos Vinha la cõ os difleyers / E Vemdo que ~~ho d~~ elle montesinhos quis Vir pella escala [sic.] arriva cõ muyta furia sem que elle test.^a te emtão Viu os difleyers acudiu' elle test.^a cõ a yrmãa dos dittos mancebos ~~para lhe~~ por ympedir lhe que não fisesse alguã forca ho qual Visto pello ditto montesinhos deu a dita mulher E a empurrou' cõ a mão E a mal tratou' E Como este test.^a dixe a os diefleyers que não prendesse' os dittos yrmãos não Cessou ho ditto montesinhos de gritar prendey os que são ladrois, ladois são, prendej os. [Signatures]

¹ See a Dutch version of this affidavit, including the testimony of a Dutchman, Gerrit Everts, in: SAA: 5075, notary public Nicolaes and Jacob Jacobs., book 379, fols. 363-364 (1616-7-7), published in:

SR Nr. 964, 10:2 (1976): 216:

Deed concerning a quarrel between Simão and João da Veiga and Jacob Montesinos.

Gerrit Everts, about 70 years old, Luis Vas, 29 years old, Felipe Lopes, 27 years old and Estienen Senton, a Frenchman, 31 years old, make the following affidavit concerning a quarrel between Simão and João da Veiga and Jacob Montesinos. Montesinos, armed with an unsheathed rapier and assisted by a servant armed with a broomstick, would have attacked João da Veiga, brother of Manoel Rodrigues Veiga, on the street. The day after João had an altercation with Montesinos and his wife. The latter two insinuated that Da Veiga's sisters were prostitutes and that they had moved from Antwerp to Brussels because of this. When Simão and João were apprehended Montesinos tried to kill them

n. 37: See also deeds nrs 967 and 969. In an interrogation by the judicial magistrates of Amsterdam on July 16, 1616 Simão da Veiga, cashier from Lisbon, about 32 years old, declares that his quarrel with Montesinos started because the latter insinuated that he was bankrupt and that his mother and sister were prostitutes. It later came to a scuffle on the Blauwbrug where he hit Vega with a stick but he did not draw his dagger. His brother got involved only later. (See G.A.A., R.A., 291, fol. 32.)

n. f: Fol. 363-364: Dutch summary; fol. 415: signed statement in Dutch and Portuguese.

² Published in SR Nr. 967, 10:2 (1976): 216:

Affidavits of Gaspar Burgos, about 70 years old, Fernando d'Alvares Mello, about 47 years old, Matheo Rodrigues, about 60 years old, Juan Goncales, about 27 years old, Francisco da Costa, about 22 years old, Antonio Nunes Torres, about 44 years old, Sebastião Nunes, about 38 years old and Jorge Vas Pereira, about 22 years old, made at the request of Simão and João da Veiga concerning a quarrel between the latter two and Jacob Montesinos.

n. 40: See further deed nr. 964.

³ SR Nr. 969, 10: 2 (1976): 216:

Affidavit of Mathias Rodrigues, about 60 years old, Fernando Alvares de Mello, about 47 years old, Diogo Gomes da Costa, about 28 years old and Jacob Dein and his wife, made at the request of João da Veiga concerning a quarrel between Simão and João da Veiga and Jacob Montesinos.

n. 41: See further deed nr. 964.

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period, University of Maryland, College Park, MD, August, 18-20, 2013

La Mala Sangre: daily violence within the Western Sephardic Diaspora
Daniel Strum, USP

A few other cases of violence by or among Sephardic Jews registered in Amsterdam notarial records (summaries were published in *Studia Rosenthaliana*)¹

Campos vs. Alvares:

Stadsarchief Amsterdam (SAA): Archief van de Notarissen ter Standplaats Amsterdam (5075), notary public Jacob and Nicolaes Jacobs, book 377A, fol. 240 (1614-6-26)
SR Nr. 739, 7:2 (1973): 267-268

Sebastião Rodrigues Chaves, about 21 years old, and Vasco Gomes, about 20 years old, Portuguese merchant in Amsterdam, make the following statement at the request of Rodrigo Alvares: when Rodrigues Chaves went home from church a 9 to 10 months ago in the company of Alvares, they met Manoel de Campos. De Campos took off his hat and produced a stick from under his cloak and gave Alvares a beating with the words “thus the account will be settled.” When Alvares tried to take the stick away from him, De Campos drew his sword. They were then separated by by-standers².

Jews vs. Dutch (?) shoemaker apprentice:

SAA: 5075, notary public Hendrick Bruyningh, book 747, fol. 1059 (1624-5-13)
SR Nr. 3152, 29:1 (1995): 100

Affidavits by Willem Jansz., baker, 40 years old, Gerrit Adriaensz. Meun 38 years old, Claes Reynierssen, cooper, 28 years old, Lubbert Fockes, cooper, 36 years old, Hermen Jansz., cloth maker, 34 years old and Hendrick Hermens, cooper, 22 years old, made at the request of the wife of captain Pieter Mieussen Vloo concerning a fight that took place in the evening of May 12 last in the Breestraat and Korte Houtstraat. In this fight some Portuguese were harassed and one elderly Portuguese was maltreated by a certain Jan, a shoemaker's apprentice. The shoemaker's apprentice was stabbed.

Cardoso vs. Pina:

SAA: 5075, notary public Jacob and Nicolaes Jacobs., book 390, fol. 393 (1625-6-24)

SR Nr. 3326, 30:2 (1996): 318

Carolus de Becx, 25 years old and Isaac Brazilai, 29 years old, make the following statement at the request of Balthasar Cardoso. Becx declares that together with Cardoso he had entered Breestraat from outside Sint Anthonispoort. There they passed Abraham de Pina with his wife and sister. Cardoso did not speak to them nor did he insult them but it was De Pina who abused Cardoso, shouting that one of his friends should give him a sword so that he could kill that thief. Then De Pina took hold of a broomstick and rushed at Cardoso, who did all he could to ward off the blows. Brazilai declares that he and many other Portuguese witnessed this scene and that he took the stick away from De Pina. Both declare that they have clearly heard it said that the judicial authorities had forbidden Cardoso and De Pina to abuse one another in any way, either by words or by actions.

SAA: 5075, notary public Willem Cluijt, book 369A, fol 357 (1625-?-?)

SR Nr. 3338, 31:1 and 2 (1997): 141³

Statement by Mozes Peixoto, 38 years old, Anthonio Fernandes Branco, 55⁴ years old and Emanuel Castiel, 27 years old, all living in Amsterdam, made at the request of Johan ten Grootenhuyse, bailiff in Amsterdam and Abraham Pina. They saw that on Vlooienburg, in the direction of Breestraat, on July 30 last, a Balthasar Cardoso followed Pina and that near the house of Doctor Mendo Lopes, he attacked Pina from behind. He hit him with a stick so that Pina fell to the ground. Cardoso then tried to throw a glass of ink in Pina's face. Peixoto, Branco and Castiel managed to prevent this and got splattered with ink in the process. Castiel explained the contents of this instrument to Branco, who does not understand Dutch⁵.

Transitive property of enmity through kinship:

SAA: 5075, notaries public Jacob and Nicolaes Jacobs., book 384B, fol. 703 (1621-11-2)

SR Nr. 2516, 20:1 (1986): 112

Francisco Lopes, 49 years old and Miguel de Pas, 30 years old, Portuguese merchants in Amsterdam, make the following statement at the request of Fernão Gomes Mendes. Lopes declares that some time ago he heard at the exchange

[Bourse] that Fernão Gomes Mendes and Francisco Mendes de Medeiros were having a quarrel and that Medeiros said to Mendes: “You consider my brother Christovão Mendes your enemy and I swear that I will be your enemy as well.” De Pas declares that Francisco Mendes de Medeiros and Christovão Mendes are not on speaking terms with Fernão Gomes Mendes and have been enemies for some time. Both declare that two or three months ago Fernão Gomes Trancoso left Amsterdam as a bankrupt.

¹ Refers to the numbers given by the editors of the series, the volume, number, year and pages of the journal: PIETERSE, W. C. & KOEN, E. M. (eds.). “Notarial Records [Deeds] in Amsterdam Relating to the Portuguese Jews in that Town up to 1639.” *Studia Rosenthaliana*, Assen: Van Gorcum. Vv. 1–31, 1967 to 1997. Amsterdam: Amsterdam University Press, 32–35, 1998 to 2001.

² [n. 36] On June 20 and August 8, 1614 Jeronimo Casco from Trujillo (Trosilge) in Estremadura, about 50 years old, wool dyer, declares before the court of the echevins, after torture had been applied, that Rodrigo Alvares bribed him to buy a stick and fight someone who had given Alvares a beating in public five or six months ago. As a reward he would be allowed to sail to the East Indies as sergeant on a ship. He declares that Alvares also lived in Leiden.

(G.A.A., R.A. 290, confessieboeken, fol. 33, 54v.).

³ [n. 5] Copy of the instrument in Not. Arch. 351 B, fol. 278v., 279.

⁴ [n. a] The name Jacob Levi was crossed out.

⁵ [n. b] Undated, July 31 was crossed out.